

Riverside Booksellers Ass'n v. City of Fairmont - Memorandum Opinion and Order

Memorandum Opinion and Order in Riverside Booksellers Ass'n v. City of Fairmont.

Procedural posture: District court denied a preliminary injunction against a city licensing ordinance, and appellant seeks emergency relief pending appeal. Record material: Appellant filed a notice of appeal within fourteen days of the injunction order. Issue: Expedited briefing and emergency handling. Standard of review:

discretionary case-management review. Record excerpt: Festival calendar. The annual city festival begins in twelve days and includes the area covered by the ordinance.

Nature of suit: Civil Rights - First Amendment. Lower tribunal: U.S. District Court for the Northern District of West Virginia.